

TOWN OF DRYDEN LOCAL LAW NO. 2 OF THE YEAR 2026

A LOCAL LAW AMENDING CHAPTER 270 OF THE TOWN CODE TO DEFINE DATA CENTERS AND CRYPTOCURRENCY FACILITIES AND ADDRESS RELATED MATTERS

Be it enacted by the Town Board of the Town of Dryden as follows:

Section 1. Authority and Purpose

This Local Law is enacted pursuant to the authority and provisions of Section 10 of the Municipal Home Rule Law of the State of New York and all other powers and authority vested in the Town Board of the Town of Dryden to regulate and control land use and to protect the health, safety and welfare of its residents.

It is the purpose of this Local Law to define data centers and cryptocurrency facilities and otherwise take no action to include such uses within the table of allowable uses, thereby protecting the order, conduct, safety health and well-being of the residents of the Town who are faced with heightened risks associated with cryptocurrency facilities and data centers.

Section 2. Amendment of Section 270-3.2

Section 270-3.2, entitled “Definitions” is amended by adding the following in the appropriate alphabetical locations of such section:

ACCESSORY DATA CENTER – A building, or structure, or partial use of a building or structure, used to store, manage, process or transmit digital data for business uses, including computers, network equipment, systems, servers, and other associated components related to the digital data storage and operations that is secondary, subordinate and customarily incidental to and located on the same lot as the principal use of a property. Such a use cannot dominate the property or operate as an independent principal use.

DATA CENTER – An industrial use facility that is primarily used for the storage, management, processing, and transmission of digital data, and which houses computer or network equipment, systems, servers, appliances, and other associated components related to the digital data storage and processing as a principal land use on a parcel. Equipment and accessories customary to data centers including but not limited to air handlers, power generators, water cooling and storage facilities, utility substations, and other associated utility infrastructure shall also be considered part of a data center.

CRYPTOCURRENCY – A digitally generated currency secured in a manner making it difficult to counterfeit or double spend.

CRYPTOCURRENCY DATA MINE – A specific type of data center using a facility or use of land, buildings, or structures where computing equipment is used to solve complex mathematical

algorithms in connection with verifying and adding transactions to a blockchain or other distributed ledger, commonly known as cryptocurrency mining. For purposes of this law, a cryptocurrency data mining operation shall be considered a distinct land use, different from a “data center” as defined in this section.

Section 3. Amendment of Section 270-5.1

Section 270-5.1, entitled “Restrictions on land/structure uses” is amended by replacing subparagraph (B) thereof with the following:

If an applicant proposes a land use that does not clearly fall within any of the categories contained in the Allowable Use Groups Chart in §270-5.2, the Planning Department shall deny the application for a zoning permit and inform the applicant of the process of appealing such denial to the ZBA, or refer the applicant to the Town Board for its review and possible consideration of an amendment to this chapter. When a proposed land use clearly falls within a category contained in the Allowable Use Groups Chart in §270-5.2 or a use defined in §270-3.2, then such proposed land use shall not be interpreted as falling within another category or defined use unless specifically stated elsewhere by this chapter.

Section 4. No change to Section 270-5.2(C)(2)

Subsection (C)(2) of Section 270-5.2, entitled “Allowable Use Groups Chart” shall remain the same.

Section 5. Severability

If any provision of this law is deemed invalid by a court of competent jurisdiction, such invalidity shall not affect the remaining provisions, which shall remain in full force and effect.

Section 6. Effective Date

This law shall take effect immediately upon filing with the New York State Department of State.